



**Bill Number: S.B. 1067**

**Rogers Floor Amendment**

**Reference to: printed bill**

**Amendment drafted by: Zack Dean**

### **FLOOR AMENDMENT EXPLANATION**

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- Adds a delayed repeal date of October 1, 2028.

ROGERS FLOOR AMENDMENT  
SENATE AMENDMENTS TO S.B. 1067  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-268, Arizona Revised Statutes, is amended to  
3 read:

4 11-268. Removal of rubbish, trash, weeds, filth, debris and  
5 dilapidated buildings; violation; classification;  
6 removal by county; costs assessed; collection;  
7 priority of lien; definitions

8 A. The board of supervisors, by ordinance, shall compel the owner,  
9 lessee or occupant of buildings, grounds or lots located in the  
10 unincorporated areas of the county to remove rubbish, trash, weeds, filth,  
11 debris or dilapidated buildings that constitute a hazard to public health  
12 and safety from buildings, grounds, lots, contiguous sidewalks, streets  
13 and alleys. Any such ordinance shall require and include:

14 1. Reasonable written notice to the owner, any lienholder, the  
15 occupant or the lessee. The notice shall be given at least thirty days  
16 before the day set for compliance and shall include the estimated cost to  
17 the county for the removal if the owner, occupant or lessee does not  
18 comply. The notice shall be either personally served or mailed by  
19 certified mail to the owner, occupant or lessee at ~~his~~ THE OWNER'S,  
20 OCCUPANT'S OR LESSEE'S last known address, or the address to which the  
21 tax bill for the property was last mailed. If the owner does not reside  
22 on the property, a duplicate notice shall also be sent to the owner at the  
23 owner's last known address.

24 2. Provisions for appeal on both the notice and the assessments.

25 3. That any person, firm or corporation that recklessly places any  
26 rubbish, trash, filth or debris on any private or public property located  
27 in the unincorporated areas of the county not owned or under the control  
28 of the person, firm or corporation:

1 (a) Is guilty of a class 1 misdemeanor unless that person, firm or  
2 corporation immediately removes or causes to be removed the rubbish,  
3 trash, filth or debris from that property. One hundred ~~per cent~~ PERCENT  
4 of any assessed fine shall be deposited in the general fund of the county  
5 in which the fine was assessed. At least fifty ~~per cent~~ PERCENT of the  
6 fine shall be used by the county for the purposes of illegal dumping  
7 cleanup.

8 (b) In addition to the fine that is imposed for a violation of this  
9 section, is liable for all costs that may be assessed pursuant to this  
10 section for the removal of the rubbish, trash, filth or debris.

11 4. AT THE OPTION OF THE BOARD OF SUPERVISORS, THE COUNTY TREASURER  
12 TO INCLUDE ON THE PROPERTY TAX BILL AND PROPERTY TAX STATEMENT FOR THE  
13 PROPERTY THE AMOUNT OF THE ASSESSMENT.

14 B. The ordinance may provide that if any person with an interest in  
15 the property, including an owner, lienholder, lessee or occupant of the  
16 buildings, grounds or lots, after notice as required by subsection A,  
17 paragraph 1 OF THIS SECTION, does not remove the rubbish, trash, weeds,  
18 filth, debris or dilapidated buildings and abate the condition that  
19 constitutes a hazard to public health and safety, the county, at the  
20 expense of the owner, lessee or occupant, may remove, abate, enjoin or  
21 cause the removal of the rubbish, trash, weeds, filth, debris or  
22 dilapidated buildings.

23 C. The board of supervisors may prescribe by the ordinance a  
24 procedure for such removal or abatement and for making the actual cost of  
25 the removal or abatement, including the actual costs of any additional  
26 inspection and other incidental costs in connection with the removal or  
27 abatement, an assessment on the lots and tracts of land from which the  
28 rubbish, trash, weeds, filth, debris or dilapidated buildings are removed.

29 D. The ordinance may provide that the cost of removal, abatement or  
30 injunction of the rubbish, trash, weeds, filth, debris or dilapidated  
31 buildings from any lot or tract of land located in the unincorporated  
32 areas of the county and associated legal costs be assessed in the manner  
33 and form prescribed by ordinance of the county on the property from which  
34 the rubbish, trash, weeds, filth, debris or dilapidated buildings are  
35 removed, abated or enjoined. The county shall record the assessment in  
36 the county recorder's office in the county in which the property is  
37 located, including the date and amount of the assessment and the legal  
38 description of the property. Any assessment recorded after August 6, 1999  
39 is prior and superior to all other liens, obligations or other  
40 encumbrances, except liens for general taxes and prior recorded  
41 mortgages. A sale of the property to satisfy an assessment obtained under  
42 this section shall be made on judgment of foreclosure and order of sale.  
43 The county may bring an action to enforce the lien in the superior court  
44 in the county in which the property is located at any time after the  
45 recording of the assessment, but failure to enforce the lien by such  
46 action does not affect its validity. The recorded assessment is prima  
47 facie evidence of the truth of all matters recited in the assessment and

1 of the regularity of all proceedings before the recording of the  
2 assessment. The assessment provided for in this subsection shall not be  
3 levied against state or federal property.

4 E. Assessments that are imposed under subsection D of this section  
5 run against the property until ~~they~~ **THE ASSESSMENTS** are paid and are due  
6 and payable in equal annual installments as follows:

7 1. Assessments of less than ~~five hundred dollars~~ **\$500** shall be paid  
8 within one year after the assessment is recorded.

9 2. Assessments of ~~five hundred dollars~~ **\$500** or more but less than  
10 ~~one thousand dollars~~ **\$1,000** shall be paid within two years after the  
11 assessment is recorded.

12 3. Assessments of ~~one thousand dollars~~ **\$1,000** or more but less than  
13 ~~five thousand dollars~~ **\$5,000** shall be paid within three years after the  
14 assessment is recorded.

15 4. Assessments of ~~five thousand dollars~~ **\$5,000** or more but less  
16 than ~~ten thousand dollars~~ **\$10,000** shall be paid within six years after the  
17 assessment is recorded.

18 5. Assessments of ~~ten thousand dollars~~ **\$10,000** or more shall be  
19 paid within ten years after the assessment is recorded.

20 F. A prior assessment for the purposes provided in this section is  
21 not a bar to a subsequent assessment or assessments for such purposes, and  
22 any number of liens on the same lot or tract of land may be enforced in  
23 the same action.

24 G. Before the removal of a dilapidated building, the board of  
25 supervisors shall consult with the state historic preservation officer to  
26 determine if the building is of historical value.

27 H. If a county removes a dilapidated building pursuant to this  
28 section, the county assessor shall adjust the valuation of the property on  
29 the property assessment tax rolls from the date of removal.

30 I. If a person, firm or corporation is required to remove any  
31 rubbish, trash, filth or debris pursuant to subsection A, paragraph 3 **OF**  
32 **THIS SECTION**, the person, firm or corporation shall provide the county  
33 with a receipt from a disposal facility to indicate that the rubbish,  
34 trash, filth or debris has been disposed of as required by law.

35 J. For the purposes of this section:

36 1. "Dilapidated building" means any real property structure that is  
37 likely to burn or collapse and its condition endangers the life, health,  
38 safety or property of the public.

39 2. Occupant does not include any corporation or association  
40 operating or maintaining rights-of-way for and on behalf of the United  
41 States government, either under contract or under federal law.

42 3. Owner does not include a state or federal landowner.

1       <<Sec. 2. Section 11-268, Arizona Revised Statutes, [as amended by  
2 section 1 of this act.] is amended to read:

3       11-268. Removal of rubbish, trash, weeds, filth, debris and  
4 dilapidated buildings; violation; classification;  
5 removal by county; costs assessed; collection;  
6 priority of lien; definitions

7       A. The board of supervisors, by ordinance, shall compel the owner,  
8 lessee or occupant of buildings, grounds or lots located in the  
9 unincorporated areas of the county to remove rubbish, trash, weeds, filth,  
10 debris or dilapidated buildings that constitute a hazard to public health  
11 and safety from buildings, grounds, lots, contiguous sidewalks, streets  
12 and alleys. Any such ordinance shall require and include:

13       1. Reasonable written notice to the owner, any lienholder, the  
14 occupant or the lessee. The notice shall be given at least thirty days  
15 before the day set for compliance and shall include the estimated cost to  
16 the county for the removal if the owner, occupant or lessee does not  
17 comply. The notice shall be either personally served or mailed by  
18 certified mail to the owner, occupant or lessee at the owner's, occupant's  
19 or lessee's last known address or the address to which the tax bill for  
20 the property was last mailed. If the owner does not reside on the  
21 property, a duplicate notice shall also be sent to the owner at the  
22 owner's last known address.

23       2. Provisions for appeal on both the notice and the assessments.

24       3. That any person, firm or corporation that recklessly places any  
25 rubbish, trash, filth or debris on any private or public property located  
26 in the unincorporated areas of the county not owned or under the control  
27 of the person, firm or corporation:

28       (a) Is guilty of a class 1 misdemeanor unless that person, firm or  
29 corporation immediately removes or causes to be removed the rubbish,  
30 trash, filth or debris from that property. One hundred percent of any  
31 assessed fine shall be deposited in the general fund of the county in  
32 which the fine was assessed. At least fifty percent of the fine shall be  
33 used by the county for the purposes of illegal dumping cleanup.

34       (b) In addition to the fine that is imposed for a violation of this  
35 section, is liable for all costs that may be assessed pursuant to this  
36 section for the removal of the rubbish, trash, filth or debris.

37       ~~[4. At the option of the board of supervisors, the county treasurer~~  
38 ~~to include on the property tax bill and property tax statement for the~~  
39 ~~property the amount of the assessment.]~~

40       B. The ordinance may provide that if any person with an interest in  
41 the property, including an owner, lienholder, lessee or occupant of the  
42 buildings, grounds or lots, after notice as required by subsection A,  
43 paragraph 1 of this section, does not remove the rubbish, trash, weeds,  
44 filth, debris or dilapidated buildings and abate the condition that  
45 constitutes a hazard to public health and safety, the county, at the  
46 expense of the owner, lessee or occupant, may remove, abate, enjoin or

1 cause the removal of the rubbish, trash, weeds, filth, debris or  
2 dilapidated buildings.

3 C. The board of supervisors may prescribe by the ordinance a  
4 procedure for such removal or abatement and for making the actual cost of  
5 the removal or abatement, including the actual costs of any additional  
6 inspection and other incidental costs in connection with the removal or  
7 abatement, an assessment on the lots and tracts of land from which the  
8 rubbish, trash, weeds, filth, debris or dilapidated buildings are removed.

9 D. The ordinance may provide that the cost of removal, abatement or  
10 injunction of the rubbish, trash, weeds, filth, debris or dilapidated  
11 buildings from any lot or tract of land located in the unincorporated  
12 areas of the county and associated legal costs be assessed in the manner  
13 and form prescribed by ordinance of the county on the property from which  
14 the rubbish, trash, weeds, filth, debris or dilapidated buildings are  
15 removed, abated or enjoined. The county shall record the assessment in  
16 the county recorder's office in the county in which the property is  
17 located, including the date and amount of the assessment and the legal  
18 description of the property. Any assessment recorded after August 6, 1999  
19 is prior and superior to all other liens, obligations or other  
20 encumbrances, except liens for general taxes and prior recorded  
21 mortgages. A sale of the property to satisfy an assessment obtained under  
22 this section shall be made on judgment of foreclosure and order of sale.  
23 The county may bring an action to enforce the lien in the superior court  
24 in the county in which the property is located at any time after the  
25 recording of the assessment, but failure to enforce the lien by such  
26 action does not affect its validity. The recorded assessment is prima  
27 facie evidence of the truth of all matters recited in the assessment and  
28 of the regularity of all proceedings before the recording of the  
29 assessment. The assessment provided for in this subsection shall not be  
30 levied against state or federal property.

31 E. Assessments that are imposed under subsection D of this section  
32 run against the property until the assessments are paid and are due and  
33 payable in equal annual installments as follows:

34 1. Assessments of less than \$500 shall be paid within one year  
35 after the assessment is recorded.

36 2. Assessments of \$500 or more but less than \$1,000 shall be paid  
37 within two years after the assessment is recorded.

38 3. Assessments of \$1,000 or more but less than \$5,000 shall be paid  
39 within three years after the assessment is recorded.

40 4. Assessments of \$5,000 or more but less than \$10,000 shall be  
41 paid within six years after the assessment is recorded.

42 5. Assessments of \$10,000 or more shall be paid within ten years  
43 after the assessment is recorded.

44 F. A prior assessment for the purposes provided in this section is  
45 not a bar to a subsequent assessment or assessments for such purposes, and  
46 any number of liens on the same lot or tract of land may be enforced in  
47 the same action.

1 G. Before the removal of a dilapidated building, the board of  
2 supervisors shall consult with the state historic preservation officer to  
3 determine if the building is of historical value.

4 H. If a county removes a dilapidated building pursuant to this  
5 section, the county assessor shall adjust the valuation of the property on  
6 the property assessment tax rolls from the date of removal.

7 I. If a person, firm or corporation is required to remove any  
8 rubbish, trash, filth or debris pursuant to subsection A, paragraph 3 of  
9 this section, the person, firm or corporation shall provide the county  
10 with a receipt from a disposal facility to indicate that the rubbish,  
11 trash, filth or debris has been disposed of as required by law.

12 J. For the purposes of this section:

13 1. "Dilapidated building" means any real property structure that is  
14 likely to burn or collapse and its condition endangers the life, health,  
15 safety or property of the public.

16 2. Occupant does not include any corporation or association  
17 operating or maintaining rights-of-way for and on behalf of the United  
18 States government, either under contract or under federal law.

19 3. Owner does not include a state or federal landowner.>>

20 Sec. 3. Section 42-18115, Arizona Revised Statutes, is amended to  
21 read:

22 42-18115. Easements and liens not extinguished by sale

23 A. The sale of a real property tax lien does not extinguish any  
24 easement on or appurtenant to the property.

25 B. The sale of a real property tax lien does not extinguish any  
26 lien for an assessment levied pursuant to title 48, chapter 4, 6 or  
27 14, ~~or~~ or section 9-276 OR 11-268.

28 <<Sec. 4. Section 42-18115, Arizona Revised Statutes, [as amended  
29 by section 3 of this act.] is amended to read:

30 42-18115. Easements and liens not extinguished by sale

31 A. The sale of a real property tax lien does not extinguish any  
32 easement on or appurtenant to the property.

33 B. The sale of a real property tax lien does not extinguish any  
34 lien for an assessment levied pursuant to title 48, chapter 4, 6 or 14 or  
35 section 9-276 [or 11-268].>>

36 Sec. 5. Section 42-18204, Arizona Revised Statutes, is amended to  
37 read:

38 42-18204. Judgment foreclosing right to redeem; effect

39 A. In an action to foreclose the right to redeem:

40 1. If the court finds that the tax lien sale is valid, the tax lien  
41 has not been redeemed and the defendant's request for an excess proceeds  
42 sale is unreasonable or the defendant did not request an excess proceeds  
43 sale, the court shall enter judgment:

44 (a) Foreclosing the right of the defendant to redeem.

45 (b) Directing the county treasurer to expeditiously execute and  
46 deliver to the party in whose favor judgment is entered, including the

1 state, a deed conveying the property described in the certificate of  
2 purchase.

3       2. If the court finds that the tax lien sale is valid, the tax lien  
4 has not been redeemed and the defendant's request for an excess proceeds  
5 sale is reasonable, the court shall enter judgment:

6       (a) Foreclosing the right of the defendant to redeem.

7       (b) Directing the sale of the property pursuant to article 6 of  
8 this chapter.

9       (c) Setting the opening bid for the property as the total of the  
10 amounts described in subsection B, paragraph 1, subdivisions (a), (b), (c)  
11 and (e) of this section and any other reasonable fees as determined by the  
12 court.

13       B. A property owner whose right to redeem is being foreclosed may  
14 request the court to determine if the sale of the property to recover  
15 excess proceeds is reasonable. The court shall determine that the sale of  
16 the property for excess proceeds is reasonable if the sale price of the  
17 property is likely to be more than \$2,500 above the total of the amounts  
18 described in paragraph 1 of this subsection. If a request is made for an  
19 excess proceeds sale, the following information shall be provided to the  
20 court for the purposes of determining if an excess proceeds sale is  
21 reasonable:

22       1. The certificate of purchase holder shall provide all of the  
23 following:

24       (a) The costs related to filing the claim to foreclose the right to  
25 redeem, including estimated attorney fees and costs to be incurred through  
26 the date of the excess proceeds sale, if ordered.

27       (b) The amount for which the real property tax lien was sold, with  
28 interest at a rate of sixteen percent per annum from the date of the tax  
29 lien sale through the date of the excess proceeds sale, if ordered.

30       (c) The amount of any statutory fees the certificate of purchase  
31 holder paid in connection with the certificate of purchase, except the  
32 processing fee imposed by section 42-18116, subsection C, with interest at  
33 a rate of sixteen percent per annum from the date of the tax lien sale  
34 through the date of the excess proceeds sale, if ordered.

35       (d) The amount of all other recorded state liens or encumbrances on  
36 the state property as indicated on a title report provided by the  
37 certificate of purchase holder, including other years in which taxes are  
38 delinquent. For the purposes of this subdivision, the certificate of  
39 purchase holder does not have to determine the actual balance owed on any  
40 lien or encumbrance on the property, except for property taxes owed.

41       (e) The estimated cost of the sale of property pursuant to article  
42 6 of this chapter.

43       (f) Any other evidence relating to the value of the property or  
44 objecting to the excess proceeds sale that the certificate of purchase  
45 holder deems necessary.

46       2. The property owner whose right to redeem is being foreclosed  
47 shall provide a reasonable estimate of the market value of the property.



1 C. After entering judgment the parties whose rights to redeem the  
2 tax lien are thereby foreclosed have no further legal or equitable right,  
3 title or interest in the property subject to the right of appeal and stay  
4 of execution as in other civil actions.

5 D. The foreclosure of the right to redeem does not extinguish any  
6 of the following:

7 1. An easement on or appurtenant to the property.

8 2. A lien for an assessment levied pursuant to title 48, chapter 4,  
9 6, 14 or 18 or section 9-276 OR 11-268. For the purposes of this  
10 paragraph, assessment does not include an abatement lien imposed under  
11 section 9-499.

12 3. If the court finds that the request for an excess proceeds sale  
13 is reasonable, the property owner's interest in the excess proceeds from  
14 the sale of the property pursuant to article 6 of this chapter.

15 <<Sec. 6. Section 42-18204, Arizona Revised Statutes, [as amended  
16 by section 5 of this act.] is amended to read:

17 42-18204. Judgment foreclosing right to redeem; effect

18 A. In an action to foreclose the right to redeem:

19 1. If the court finds that the tax lien sale is valid, the tax lien  
20 has not been redeemed and the defendant's request for an excess proceeds  
21 sale is unreasonable or the defendant did not request an excess proceeds  
22 sale, the court shall enter judgment:

23 (a) Foreclosing the right of the defendant to redeem.

24 (b) Directing the county treasurer to expeditiously execute and  
25 deliver to the party in whose favor judgment is entered, including the  
26 state, a deed conveying the property described in the certificate of  
27 purchase.

28 2. If the court finds that the tax lien sale is valid, the tax lien  
29 has not been redeemed and the defendant's request for an excess proceeds  
30 sale is reasonable, the court shall enter judgment:

31 (a) Foreclosing the right of the defendant to redeem.

32 (b) Directing the sale of the property pursuant to article 6 of  
33 this chapter.

34 (c) Setting the opening bid for the property as the total of the  
35 amounts described in subsection B, paragraph 1, subdivisions (a), (b), (c)  
36 and (e) of this section and any other reasonable fees as determined by the  
37 court.

38 B. A property owner whose right to redeem is being foreclosed may  
39 request the court to determine if the sale of the property to recover  
40 excess proceeds is reasonable. The court shall determine that the sale of  
41 the property for excess proceeds is reasonable if the sale price of the  
42 property is likely to be more than \$2,500 above the total of the amounts  
43 described in paragraph 1 of this subsection. If a request is made for an  
44 excess proceeds sale, the following information shall be provided to the  
45 court for the purposes of determining if an excess proceeds sale is  
46 reasonable:

1       1. The certificate of purchase holder shall provide all of the  
2 following:

3       (a) The costs related to filing the claim to foreclose the right to  
4 redeem, including estimated attorney fees and costs to be incurred through  
5 the date of the excess proceeds sale, if ordered.

6       (b) The amount for which the real property tax lien was sold, with  
7 interest at a rate of sixteen percent per annum from the date of the tax  
8 lien sale through the date of the excess proceeds sale, if ordered.

9       (c) The amount of any statutory fees the certificate of purchase  
10 holder paid in connection with the certificate of purchase, except the  
11 processing fee imposed by section 42-18116, subsection C, with interest at  
12 a rate of sixteen percent per annum from the date of the tax lien sale  
13 through the date of the excess proceeds sale, if ordered.

14       (d) The amount of all other recorded state liens or encumbrances on  
15 the state property as indicated on a title report provided by the  
16 certificate of purchase holder, including other years in which taxes are  
17 delinquent. For the purposes of this subdivision, the certificate of  
18 purchase holder does not have to determine the actual balance owed on any  
19 lien or encumbrance on the property, except for property taxes owed.

20       (e) The estimated cost of the sale of property pursuant to article  
21 6 of this chapter.

22       (f) Any other evidence relating to the value of the property or  
23 objecting to the excess proceeds sale that the certificate of purchase  
24 holder deems necessary.

25       2. The property owner whose right to redeem is being foreclosed  
26 shall provide a reasonable estimate of the market value of the property.

27       C. After entering judgment the parties whose rights to redeem the  
28 tax lien are thereby foreclosed have no further legal or equitable right,  
29 title or interest in the property subject to the right of appeal and stay  
30 of execution as in other civil actions.

31       D. The foreclosure of the right to redeem does not extinguish any  
32 of the following:

33       1. An easement on or appurtenant to the property.

34       2. A lien for an assessment levied pursuant to title 48, chapter 4,  
35 6, 14 or 18 or section 9-276 ~~[or 11-268]~~. For the purposes of this  
36 paragraph, assessment does not include an abatement lien imposed under  
37 section 9-499.

38       3. If the court finds that the request for an excess proceeds sale  
39 is reasonable, the property owner's interest in the excess proceeds from  
40 the sale of the property pursuant to article 6 of this chapter.>>

Senate Amendments to S.B. 1067

1       <<Sec. 7. Effective date  
2       [Section 11-268, Arizona Revised Statutes, as amended by section 2  
3 of this act, section 42-18115, Arizona Revised Statutes, as amended by  
4 section 4 of this act, and section 42-18204, Arizona Revised Statutes, as  
5 amended by section 6 of this act, are effective from and after September  
6 30, 2028.]>>

7 Enroll and engross to conform  
8 Amend title to conform

WENDY ROGERS

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